1951	F FAR EASTERN DEPARTMENT JAPAN	FJ 1022/7 27

FROM

Sir O. Franks
Washington

No. 1. Saving.

Dated 1st January 1950.

Received in Registry 4th January 1951.

Japanese Peace Treaty: rejection of Soviet views on the negotiations of a Peace Treaty: most salient points.

Repeat Tokyo Saving.

REFERENCES

(Print)

(How disposed of)

Tel. Washington No 80 8th Jan

MINUTES

Paragraph 4 of this telegram asks for instructions in case the Russians try to place a resolution concerning General MacArthur's New Year Message (F(Jap.)) to the Japanese before the F.E.C. The next F.E.C. meeting is probably on 11th January.

Draft telegram to Washington submitted.

(C.J. Pratt) 6/1.

Draft approved by Mr. R. H. Scott.

6/1.

(A) Sir O. Franks (Washington) No 31(S) of 3rd ~~Dec~~ Jan 1951

B.V. 19/1.51

(C.J. Pratt) 13/1.

(Action completed)	(Index)
9/1	Kmp 20/6/51

39318

1951

F
FAR EASTERN DEPARTMENT
JAPAN

FJ 1022/7
27

FROM

Sir O. Franks
Washington

No. 1. Saving.
Dated 1st January 1950.
Received in Registry — 4th January 1951.

Japanese Peace Treaty: rejection of Soviet views on the negotiations of a Peace Treaty: quasi Salient points.

Repeated Tokyo Saving.

REFERENCES

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(How disposed of)
Tel. Washington No 80 6th Jan

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Draft last sentence to Washington accordingly.

(C.J. Pentt) 6/1.

Draft approved by Mr. R. H. Scott.

6/1.

(A) Sir O. Franks (Washington) No 31(S) of 9th Jan 1951

B.D. 19/1.51

(C.J. Pentt) 13/1.

39318

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INW TELEGR

EMBLAIR (By Confidential Bag)

CB 1

FROM WASHINGTON TO FOREIGN OFFICE F.O. Whitehall

No. 1 Saving
1st January 1951

D. 8:30 a.m. 2nd January 1951

FU 1022/7

Repeated to: ~~Tokyo No. 1 (Saving)~~ 28

Addressed to Foreign Office telegram No. 1 Saving of 1st January, repeated for information Saving to Tokyo.

Japanese Peace Treaty. N.R. get.

State Department's Note of 27th December (sent to you by bag on 30th December) rejects unequivocably Soviet views on the negotiation of a peace treaty for Japan. Salient points are:-

(i) Assertion that the Declaration of January 1, 1942, was intended to be binding only until Japan was defeated, with the consequent implication that there is no legal barrier to the conclusion of separate treaties.

(ii) Suggestion that the Cairo Declaration has to be interpreted in a wider context. It must, says the note, be "subject to any final peace settlement where all relevant factors should be considered", and also be considered "in the light of the United Nations Charter, the obligations of which prevail over any other international agreement".

(iii) Statement that, while on the conclusion of a peace treaty, military occupation would cease, the association of Japan in a system of collective self-defence which might involve the stationing of United States and other troops in Japan, is considered reasonable.

2. Such public comment as the State Department's note has evoked has been approving. Anne O'Hare McCormick in the New York Times quotes with approval Mr. Yoshida's appeal published in Foreign Affairs issue for January 1951, for a swift treaty without the Communist powers. The same paper on January 1st announced that the United States favoured separate peace negotiations between Japan and the member countries of the Far Eastern Commission, excluding the Soviet Union but with the addition of Indonesia. The United States was said to be hoping to complete a treaty during the first half of 1951.

/3. While the future

INW TELEGR

E[illegible]LAIR (By Confidential Bag)

FROM WASHINGTON TO FOREIGN OFFICE F.O. Whitehall

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1st January 1951

D. 8:30 a.m. 2nd January 1951

FO 1022/1

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/3. While the future

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3. While the future of Japan has not been much discussed in the press in recent weeks, there is little doubt that the idea of a separate and rapidly concluded peace treaty with Japan will meet with general approval in this country. Whatever willingness there might have been to try to negotiate with the Soviet Union, public opinion at the moment would scarcely tolerate the admission of Communist China to a seat at the peace treaty table.

4. General MacArthur's New Year message has been well received here and the Washington Post thinks that it foreshadows the raising of Japan's status to that of a full-time partner with the United States, an idea which is commending itself to an increasing number of Americans. But in encouraging the Japanese at this stage "to mount force to repel force" MacArthur comes close to inciting them to disregard Part III of Far Eastern Commission's Basic Post-Surrender Policy. It is most probable that Russians will bring this before the Commission and they would appear to have a case. I should be grateful for instructions on how to deal with a likely condemnatory resolution.

FRANKS

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Registry No. F.S. 1022/7.

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~~Secret~~
Confidential.
~~Restricted~~
~~Open~~

CYPHER

(Date) 8 JAN

Despatched 5.10 P.M.

30

Draft.

Telegram to:—
WASHINGTON

No. 80.

(Date) 8TH Jan.

Repeat to:—

Saving to:
TOKYO. GSAV.

(Mr. R.H. Scott has been appointed).

RECEIVED IN C.B.
9-JAN 1951
... TO DEPT.

~~Ea Clair~~.
~~Code~~
Cypher.

Distribution:—
F.O. & Whi.

[Security classification —if any] CONFIDENTIAL

Addressed to WASHINGTON

telegram No 80 (date) 8th Jan.
Saving

repeated for information to TOKYO

Your telegram saving No. 1 [of 1st January:] Japnaese Peace Treaty.

Your paragraph 4: At first sight the Russians appear to have a case for suggesting that General MacArthur's New Year message encourages the Japanese to contravene part III of the Far Eastern Commission's basic post-surrender policy, but as the task of answering a condemnatory Russian resolution is primarily a United States responsibility we should be glad to know, before considering the matter further, what line they propose to take if the Russians in fact raise the matter.

8/1.

NOTHING TO BE WRITTEN IN THIS MARGIN.

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W1.40502/177 125,000 1/49 " "

25

Registry No. FS 1022/7.

~~Secret~~
~~Secret & Personal~~
Confidential.
~~Restricted~~
~~Open~~

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Draft.

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WASHINGTON

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Repeat to:—

Saving to:
TOKYO. G.S.A.V.

(Mr. R.H. Scott has seen repeated).

RECEIVED IN C.B.
9-JAN 1951
... TO DEPT

~~En Clair~~.
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W1.40592/177 125,000 1/49 " "

25 87/1/51

OUTFILE

Cypher/OTP and
by Confidential Bag
FJ 1022/7

31

FOREIGN OFFICE AND WHITEHALL
DISTRIBUTION

FROM FOREIGN OFFICE TO WASHINGTON

No. 80

8th January, 1951 D. 5.10 p.m. 8th January, 1951

CONFIDENTIAL

Addressed to Washington telegram No. 80 of 8th January
Repeated for information Saving to Tokyo No. 9

Your telegram saving No. 1 [of 1st January: Japanese Peace Treaty].

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:::::

OUTSIDE

31

[redacted]

FROM FOREIGN OFFICE TO WASHINGTON

No. 22

8th January, 1951 D. 5.10 p.m. 8th January, 1951

CONFIDENTIAL

Addressed to Washington telegram No. 22 of 8th January

Repeated for information Saving to Tokyo No. 9

Your telegram saving No. 1 [of 1st January: Japanese Peace Treaty].

Your paragraph 4: At first sight the Russians appear to have a case for suggesting that General Khairlov's Not Your message contingent the Japanese to contravene part(s) of the Far Eastern Commission's basic post-surrender policy, but on the task of surveying a preliminary Russian resolution is primarily a United States responsibility we should be glad to know, before considering the matter further, what line they propose to take if the Russians in fact raise the matter.

11111

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ENCLAIR (By Confidential Bag)

FO & Whitehall

FROM WASHINGTON TO FOREIGN OFFICE

32

NO. 31 SAVING
9th December, 1951.

D. 8.30 a.m. 10th September, 1951.

FJ 1022/7A

Repeated to - Tokyo No. 3 Saving

CONFIDENTIAL

Addressed to Foreign Office telegram No. 31 Saving of 9th December, 1951, repeated for information Saving to Tokyo.

Your telegram No. 80 /of 8th January/.

General MacArthur's New Year's Message.

State Department have not decided in detail how they will reply if the Russians raise this at the Far Eastern Commission, but their general line will be that the statement about mounting force to repel force referred to the post-treaty period, when the FEC would no longer have jurisdiction over Japan. They would not reply at once but would await comments from MacArthur himself and would then work out their reply in relation to the general issue of United States policy towards a peace treaty for Japan.

2. We will keep you informed of further developments.

FRANKS



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ENCLAIR (By Confidential Bag)

FO + Whitehall

FROM WASHINGTON TO FOREIGN OFFICE

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JAN 11 1952

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